

Opinion of the Court

a State might have to answer “the suit of an individual.” Brutus No. 13 (Feb. 21, 1788), in *id.*, at 238.

In short, at the time of the founding, it was well settled that States were immune under both the common law and the law of nations. The Constitution’s use of the term “States” reflects both of these kinds of traditional immunity. And the States retained these aspects of sovereignty, “except as altered by the plan of the Convention or certain constitutional Amendments.” *Alden*, 527 U. S., at 713.

2

One constitutional provision that abrogated certain aspects of this traditional immunity was Article III, which provided a neutral federal forum in which the States agreed to be amenable to suits brought by other States. Art. III, § 2; see *Alden*, *supra*, at 755. “The establishment of a permanent tribunal with adequate authority to determine controversies between the States, in place of an inadequate scheme of arbitration, was essential to the peace of the Union.” *Principality of Monaco v. Mississippi*, 292 U. S. 313, 328 (1934). As James Madison explained during the Convention debates, “there can be no impropriety in referring such disputes” between coequal sovereigns to a superior tribunal. Elliot’s Debates 532.

The States, in ratifying the Constitution, similarly surrendered a portion of their immunity by consenting to suits brought against them by the United States in federal courts. See *Monaco*, *supra*, at 328; *Federal Maritime Comm’n*, 535 U. S., at 752. “While that jurisdiction is not conferred by the Constitution in express words, it is inherent in the constitutional plan.” *Monaco*, *supra*, at 329. Given that “all jurisdiction implies superiority of power,” Blackstone 235, the only forums in which the States have consented to suits by one another and by the Federal Government are Article III courts. See *Federal Maritime Comm’n*, *supra*, at 752.